

26STCV07117 26STCV07117

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-17

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Case Number: 26STCV07117 Hearing Date: September 17, 2026 Dept: 512

HEARING DATE: Thurs., September 17, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: IRP

Grace Apartments, LLC v. Khinich COMP.

FILED: 03-04-26

CASE NUMBER: 26STCV07117 TRIAL DATE: **05-12-26

NOTICE: OK

PROCEEDINGS: MOTION

TO SET ASIDE/VACATE JUDGMENT

MOVING PARTY: Defendant

Vlad Khinich

RESP. PARTY: None

MOTION TO SET ASIDE/VACATE JUDGMENT

(Code Civ. Proc., § 473, subds. (b),

(d))

TENTATIVE RULING:

Defendant Vlad

Khinich's Motion to Set Aside Judgment and Any Default, and to Quash Any Writ of Possession/Execution is DENIED.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of September 15, 2026 ☐ Late ☒
None

REPLY: None
filed as of September 15, 2026 ☐
Late ☒ None

ANALYSIS:

I.
Background

On March 4, 2026, Plaintiff IRP Grace
Apartments, LLC ("Plaintiff") filed a Complaint for Unlawful Detainer against
Defendant Vlad Khinich ("Defendant"). (Compl., p. 1.)

On April 3, 2026, Defendant,
proceeding pro se, filed an Answer.

On May 12, 2026, the Court called the
Non-Jury Trial and noted there was neither appearance nor communication by or
for Defendant on this date. (5/12/26 Order.) The Court proceeded with the Court
Trial and entered judgment for Plaintiff for past rent due in the amount of
\$42,024.52 and holdover damages of \$16,038.00 for a total of \$58,062.52.

(5/12/26 Order, pp. 1-2.) The Court further ordered: "Restitution and possession of the premises located at 732 S SPRING ST APT 920, LOS ANGELES, CA 90014 is granted for plaintiff(s) The Rental Agreement under which the property is held is hereby cancelled. Lease Agreement under which the property is held is hereby forfeited. Plaintiff is to submit a proposed judgment within 5 days." (5/12/26 Order.)

On May 28, 2026, the Court issued Judgment in this matter and issued Notice of Entry of Judgment to Plaintiff's counsel. (5/28/26 Order; Clerk's Cert. of Service.)

On July 13, 2026, the Court granted Defendant's Ex Parte Application for stay of execution of Default judgment until hearing on Defendant's first motion to set aside. (7/13/26 Order.) The Court "orders the execution on the Judgment stayed, pending the ruling on the Motion to Set Aside/Vacate the Default Judgment scheduled for 7/30/2026." (7/13/26 Order.)

On July 30, 2026, the Court denied Defendant's first motion to set aside and vacated the prior stay. (7/30/26 Order.)

On July 31, 2026, Defendant filed the instant second Motion to Set Aside Judgment and Any Default, and to Quash Any Writ of Possession/Execution (the "Motion").

No
Opposition has been filed.

II. Legal Standard

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was

taken.” (Code Civ. Proc., § 473, subd. (b).)

The
general underlying purpose of Code of Civil Procedure
section 473, subdivision (b) is to promote the determination of actions on
their merits. (Even Zohar Const.
& Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th
830, 838-839.)

“The court may, upon motion of the injured party, or its own motion,
correct clerical mistakes in its judgment or orders as entered, so as to
conform to the judgment or order directed, and may, on motion
of either party after notice to the other party, set aside any void judgment
or order.” (Code Civ. Proc., § 473,
subd. (d), emphasis added.)

An order is considered “void on
its face only when the invalidity is apparent from an inspection of the
judgment roll or court record without consideration of
extrinsic evidence.” (Pittman v. Beck Park Apartments Ltd. (2018)
20 Cal.App.5th 1009, 1021.) “There is no time limit to attack a judgment
void on its face.” (Ibid.) However, if “the invalidity is not apparent
[by an inspection of the judgment or the judgment roll], it may be set aside by
motion, if such motion is filed within a reasonable time, i. e., not longer
than the time set forth in Code of Civil Procedure, section 473.” (City of
Los Angeles v. Morgan (1951) 105 Cal.App.2d 726, 730.) Code of Civil
Procedure section 473, subdivision (d) contains no express time limit, and the
California Supreme Court recently abrogated the rule that Section 473,
subdivision (d) is subject to the two-year limit set forth in Code of Civil
Procedure section 473.5. (California Capital Ins. Co. v. Hoehn (2024) 17
Cal.5th 207, 225-226 [“We hold that a section 473(d) motion to vacate a
judgment that is void for lack of proper service is not subject to the
judicially imposed two-year limitation”].)

III.

Discussion

Defendant moves to set aside the final judgment in this
matter under Code of Civil Procedure sections 473, subdivisions (b) and (d). Defendant contends the final judgment should
be set aside pursuant to Code of Civil Procedure section 473, subdivision (b)

because Defendant lacked notice of the trial due to not receiving Plaintiff's counsel's emails. Defendant contends the final judgment should be set aside pursuant to Code of Civil Procedure section 473, subdivision (d) on the grounds that the three-day notice accompanying the Complaint in this matter greatly overstates the rent due and is thus void as a matter of law. (Motion, pp. 2, 5-7.)

Here,

the Court finds the Motion's contentions regarding Code of Civil Procedure section 473, subdivision (b) – namely, Defendant's failure to appear at trial due to lack of notice – were previously addressed by the Court in ruling on the first motion to set aside judgment filed by Defendant. (See 7/30/26 Order.) While Defendant repackages the argument as focused on Defendant's lack of receipt of emails regarding the trial, the Court's prior order found Defendant received proper notice by mail of the Trial. (See 7/30/26 Order.) As the Court previously ruled on the substantive merits of this portion of the instant Motion, the Court finds the instant request is an attempt to have the Court reconsider the prior ruling absent a proper motion for reconsideration. Thus, the Motion is DENIED as to the request for relief pursuant to Code of Civil Procedure section 473, subdivision (b).

As to

Defendant's contentions regarding Code of Civil Procedure section 473, subdivision (d) and voidness of the three-day notice attached to the Complaint, the Court finds these assertions are meritless and insufficiently supported. First, the three-day notice attached to the Complaint does not appear void on its face given that the three-day notice does not provide the monthly amount owed for rent; thus, the Court is unable to determine from the face of the three-day notice attached to the Complaint that the total amount of rent owed listed is incorrect and the notice is void as a matter of law. (See Compl., Exh. A.) Further, the Court finds that Defendant's self-serving declaration alone lacks credibility and is insufficient extrinsic evidence to demonstrate the three-day notice is void as a matter of law. Indeed, Defendant's only evidence submitted to demonstrate the three-day notice is void in this matter is a self-serving declaration. (See Motion, Khinich Decl.) Defendant fails to provide any other supporting evidence, such as rent payments or invoices, demonstrating that the monthly rent for the subject premises in this matter did not total the amount listed in the Complaint's three-day notice at the time the notice was served.

Moreover, the alleged overstatement of

the 3-day notice would have been an affirmative defense had Defendant appeared. Thus, this argument does not explain Defendant's failure to appear at trial and is not a proper basis for the set aside of default judgment.

The Court

acknowledges that Defendant is self-represented. Self-represented litigants are still "held to the same standards as attorneys." (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.)

Based on the foregoing, the Motion is DENIED.

IV.

Conclusion
& Order

For the foregoing reasons, Defendant Vlad Khinich's Motion to Set Aside Judgment and Any Default, and to Quash Any Writ of Possession/Execution is DENIED.

Moving party is ordered to give notice.